3041

Executive Order

CHALLIS NATIONAL FOREST

Idaho.

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34—36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Challis National Forest, as modified by Executive Order of May 21, 1914, be further modified by excluding therefrom the following described lands, in the State of Idaho:

In T. 10 N., R. 13 E., Lot 2 Sec. 3;
In T. 11 N., R. 13 E., Lot 2 and SE¼ SW¼ SE¼ Sec. 34;
In T. 13 N., R. 18 E., Sec. 10;
Boise Meridian.

And so much of the order of withdrawal of March 21, 1917, creating Power Site Reserve No. 587, as affects the lands hereinafter described is hereby revoked, and such lands are hereby reserved for townsite purposes under Section Twenty-three Hundred and Eighty, to be hereafter disposed of under Section Twenty-three Hundred and Eighty-one, United States Revised Statutes:

In T. 10 N., R. 13 E., Lot 2 Sec. 3;
In T. 11 N., R. 13 E., Lot 2 and SE¼ SW¼ SE¼ Sec. 34.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that the remainder of the excluded lands subject to disposition should be restored to homestead entry in advance of settlement or other forms of disposition, it is hereby ordered, under authority of the Act of September 30, 1913 (38 Stat., 113), that the public lands within such area, subject to valid rights, shall be opened to entry only under the provisions of the homestead laws requiring residence, at and after, but not before 9 o'clock a. m., standard time, on the sixty-third day after the date of this order, and to settlement and other disposition under any public land law applicable thereto, at and after, but not before, 9 o'clock a. m., standard time on the seventieth day after said date: Provided, that as the land involved was surveyed and the plat filed while the same was withdrawn for forestry purposes, the preference accorded the State of Idaho under the provisions of the Act of March 3, 1893 (27 Stat., 592), in the absence of a prior valid right, will attach immediately upon the restoration of the land to selection and entry under the general land laws on the seventieth day after the date hereof, as herein provided, and continue for sixty days. Prospective applicants may, during the period of twenty days preceding the date on which the lands shall become subject to entry, selection or location of the form desired under the provisions of this order, execute their applications in the manner provided by law and present the same, accompanied by the required payments, to the United States land office at Hailey, Idaho, in person, by mail, or otherwise, and all applications so filed, together with such as may be submitted at the hour fixed, shall be treated as though simultaneously filed and shall be disposed of in the manner prescribed by existing regulations. Under such regulations, conflicts of equal rights will be determined by a drawing.

Warning is hereby given that no settlement initiated prior to seven days after the date for homestead entry will be recognized, but all persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon prior to 9 o'clock a. m., standard time, on the seventieth day from and after the date hereof, or who are on or are occupying any part of said lands at such hour, except those having valid subsisting settlement rights initiated prior to withdrawal from settlement and since maintained, will be considered and dealt with as trespassers and will gain no rights whatever under such unlawful settlement or occupancy: Provided, however, that nothing herein contained shall prevent persons from going upon and over the lands to examine them with a view to appropriating them thereafter in accordance herewith. Persons having prior settlement rights, as above defined, will be allowed to make entry in accordance with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE
25 Feb'y., 1919.

[No. 3041.]